IN THE SUPREME COURT OF INDIA

CIVIL APPELLATE JURISDICTION

SPECIAL LEAVE PETITION (CIVIL) Nos.33470 - 548/2014

IN THE MATTER OF:

Mr. B.P. NAVEEN AND ORS AND ETC PETITIONERS

Versus

THE STATE OF KARNATAKA REP.
BY THE SECRETARY RESPONDENTS

COUNTER-AFFIDAVIT FILED BY THE 5TH RESPONDENT – SHIVANANJEGOWDA B.N

I, Shivananjegowda B.N., aged 39 years, s/o. Nanjegowda B.C., resident of No. 37, M.E.S. Road, Opp: Mother Theresa School, Muthyalamma Nagara, Jalahalli, Bangalore – 560 054, Karnataka State, do hereby solemnly affirm and state on oath as follows:-

1. I have quite carefully gone through the contents of the Memorandum of Special Leave Petition filed by Sri. B.P. Naveen and others, in which petition I have been arrayed by

them as the contesting respondent No.5. I am fully conversant to the facts of the case.

2. I am also seriously aggrieved by the impugned order dated 23rd September 2014 commonly passed by the Division Bench of the Hon'ble High Court of Karnataka in W.P. Nos. 6842 to 6880/2010 (S-KAT) and companion writ petitions.

3. I respectfully submit and state that I was an applicant before the Hon'ble Karnataka Administrative Tribunal, complaining about my non-selection for appointment as Inspector of Motor Vehicles in pursuance of the recruitment notification dated 18.8.2006 published by the Karnataka Public Service Commission which notification inviting application for filling 245 vacancies in the cadre of Motor Vehicle Inspectors in the Transport Department of the State of Karnataka stood quite radically reduced by as corrigendum dated 24.8.2006 issued in less than one week therefrom, for discernable reason assigned by the Commission. I had participated in the selection process. I am fully and was fully eligible for being selected and included in the select list of candidates which lamentably contained the names of many ineligible candidates who had even been found medically and physically unfit for selection and appointment. In my application filed before the Karnataka Administrative Tribunal, I had as already stated questioned by non-selection for appointment alongwith my application for recruitment I had appended a Medical Certificate issued by the competent authority it was dated 29.8.2006. The

process of selection commenced on 20.11.2006 and concluded on 28.2.2008. The Commission did not allow me to be interviewed for selection though I had been invited to be interviewed on 1.3.2008. Thus, denying me, quite unreasonably and without any reason, equality before law and equality in the matter of employment under the State and excluding me from the process of selection, the KPSC published a Provisional List dated 11.3.2008. I filed my objection to the provisional list as per **Annexure-R1** dated 23.8.2008 filed herewith. Without even a bare-look at the said objections let alone a dispassionate consideration thereof the Public Service Commission caused the publication of the Final List.

4. Feeling aggrieved thereby I had approached the Hon'ble Karnataka Administrative Tribunal with an application under Section 19 of the Administrative Tribunal Act, 1986 contended that I had been wronged, discriminated and denied the guarantee of equality before law and equality in the matter of employment under the State.

5. While including 39 ineligible candidates who could not have been selected for appointment for reason that their physical standards did not conform to the notification issued by the Commission and the requirement of the rule of recruitment, my name was deliberately excluded. I submit a petition dated 26.10.2010 to the Karnataka Information Commission complaining that the information that I had sought from the information officer had been declined to me without any justification on 1.7.2010 the Public Service

Commission replied that I was unable to furnish the information sought by me. The physical fitness certificate dated 5.7.2014 issued to me by the Senior Specialist, Government General Hospital, Jayanagar, Bangalore, which is a part of the records of the Public Service Commission, in the proceedings held for selection of candidates for the posts of Motor Vehicle Inspectors is filed herewith as **Annexure-R2**. **Annexure-R3** is yet another certificate dated 6.6.2010 issued by the Deputy Chief Medical Officer of the rank of District Surgeon, Government General Hospital, Bangalore, both the said documents would eloquently establish that my height is 169 cms. Evenso, the Public Service Commission having declined to subject me to Medical Examination falsely recorded without examining me that my height is 166 cms that was done by the Section Officer of the Public Service Commission as seen from **Annexure-R4** filed herewith. In the statement shown the particulars of ineligible candidates for recruitment, my name as also included though I was not even interviewed for selection as also stated. **Annexure-R5** is a copy of the said statement in which my name appears at Sl.No.30 in the remarks column thereof, it has been stated thus his height is less than the prescribed height. Hence, he has declined ineligible. This was done by the Section Officer of the Commission on 26.7.2011.

6. The Tribunal having disposed of all the application in which the recruitment process had been challenged, by its common order dated 25.5.2010, the same had been challenged by me also in my W.P. No. 6845/2010 (S-KAT)

the opening page (page No.1) of the impugned order filed with the Special Leave Petition would testify the same. Quite unfortunately there has not been any discussion on my writ petition nor any findings recorded thereon. On the other hand, as seen from the internal page 114 and paragraphs 27 to 29 of the impugned order the Hon'ble High Court having dismissed all the writ petitions, by the impugned common order passed by it in all the writ petitions, paragraph 29 of the said order at page 114 would show that my writ petition as also been dismissed, without any reference to the contentions urged on my behalf. My specific case before the Hon'ble Tribunal as also before the Hon'ble High Court was that though I was eligible for selection, without even interviewing me and ignoring the medical fitness certificates issued by the competent authorities I have been excluded from the select list of candidates.

7. Since my petition has also been dismissed without consideration of the merits thereof, I am also aggrieved by the common order impugned in the aforementioned special leave petition. On account of my impecunious situation and being unemployed I could not muster up my financial resources for filing a separate Special Leave Petition against the order impugned in the instant petitions.

8. In the event of this Hon'ble Court upholding the two notifications dated 18.8.2006 and 24.8.2006 that the prescribed basic qualification for recruitment, as shown in the said notification was correct and that it was not necessary to insist upon on one year's experience in a

reputed garage, I would be entitled to be considered on my merits for selection in the backdrop of what has been stated above. Therefore, excepting to the extent that I do not have any grievance against the said two notifications issued by the Commission I am aggrieved by my non-selection and exclusion from the process of interview and the unfounded remark contained in Annexure-R5 that my height is 166 cms which statement incompetently issued by the Section Officer of the Karnataka Public Service Commission is wholly unfounded and is opposed to the medical certificate of probative value which I had produced before the Commission.

9. Therefore, I respectfully submit that this Hon'ble Court be pleased to setaside the common order impugned in the Special Leave Petitions; by upholding the two notifications dated 18.8.2006 and 24.8.2006 in so far as the eligibility and qualification for recruitment shown in the said notification are concerned; and issue a direction to the KPSC to dispassionately and independently consider my case for selection for appointment as Motor Vehicle Inspectors in the Transport Department of the State under and in pursuance of the said notification, treating me physically fit and eligible for selection and appointment of the said cadre; and direct that I may be transposed as a petitioner in the Special Leave Petitions though I have been arrayed in the petitions as the 5th respondent; and if called upon I would be ready and willing to pay the prescribed court fee if I am transposed as a petitioner; to condone the unavoidable and inadvertent delay in presenting this counter-affidavit which has since

been presented by me without brooking any delay in the matter but immediately after service of notice of the said Special Leave Petitions on me; and grant such other reliefs which I may be found entitled in the circumstances of the case including the grant of the said proceedings, in the interest of justice and equity.

DEPONENT

BANGALORE
Date: 19.9.2015

VERIFICATION

Solemnly affirmed and signed before me on this the 19th day of September 2015, that the contents of this affidavit having been read over to me and are admitted to be true and correct to the best of my knowledge and belief.

DEPONENT

Verified at Bangalore on this day of 19th day of September, 2015

No.of corrections

Identified by me

Advocate

SYNOPSIS AND LIST OF DATES

1.

2.

LIST OF DATES:

22.5.1994	
..2012	Aggrieved thereby, this Special Leave Petition filed.

IN THE SUPREME COURT OF INDIA AT NEW DELHI

(Order XVI Rule 4(1)(a)
Civil Appeal Jurisdiction)

Special Leave Petition

(Under Article 136 of the Constitution of India)

With prayer for interim relief

Special Leave Petition (Civil) No._____/2011

In the matter of :-

Petitioner

And:-

Respondents

MEMORANDUM OF PETITION FOR SPECIAL LEAVE UNDER ARTICLE 136 OF THE CONSTITUTION OF INDIA FROM THE FINAL ORDER DATED 8.9.2011 PASSED BY THE HON'BLE HIGH COURT OF KARNATAKA, CIRCUIT BENCH, DHARWAR IN W.P. No. 65491/2011 (GM-CPC)

To,

The Hon'ble Chief Justice of India,
and his Companion Justices of the

Hon'ble Supreme Court of India,
New Delhi.

The humble petition of the petitioner above named

1. MOST RESPECTFULLY SHOWETH AS FOLLOWS:-

That this Special leave Petition is directed against the judgment dated the , passed by the ,

2. QUESTIONS OF LAW :-

(i)

(ii)

3. DECLARATION IN TERMS OF RULE 4(2) :-

The petitioner states that no other petition seeking leave to appeal has been filed by him previously, against the judgment questioned in this Special Leave Petition.

4. DECLARATION IN TERMS OF RULE 6 :-

The Annexures P1 to_____ produced with the Special Leave Petition are all true copies of the documents which formed part of the records of the case in the High Court from the judgment of which court the present Special Leave Petition has arisen.

5. GROUNDS :-

Leave to appeal is sought by the petitioners, on the following grounds.

I. The impugned orders are plainly opposed to Section 8 of the Hindu Succession Act, 1956.

6. GROUNDS FOR INTERIM RELIEF :-

7. MAIN PRAYER :-

It is, therefore, most respectfully prayed that this Hon'ble Court graciously be pleased to :-

a) GRANT Special Leave to appeal from the final judgment/ORDER dated;

and

b) PASS such other or further orders as this Hon'ble Court may deem just and proper in the facts and circumstances of the case, including the award of the costs of the proceedings althrough, and in the interest of justice and equity.

8. PRAYER FOR INTERIM RELIEF :-

It is, therefore, most respectfully prayed that this Hon'ble Court, be graciously pleased to:

(a) ***grant*** an interim order ;

and

(b) ***pass*** such other order or orders which this Hon'ble Court may deem fit and proper in the interest of justice.

New Delhi
Date:

Advocate for the Petitioner

IN THE SUPREME COURT OF INDIA AT NEW DELHI

S.L.P. NO._____/2011 (Civil)

IN THE MATTER OF:

Petitioner

Versus

Respondents

TO,

THE HON'BLE CHIEF JUSTICE OF INDIA AND HIS COMPANION JUDGES OF THE HON'BLE SUPREME COURT OF INDIA.

The humble petition of the petitioner above-named respectfully showeth :-

I.A. NO._____/ UNDER ORDER RULE OF THE COCE OF CIVIL PROCEDURE, 1908.

The petitioner above-named respectfully submits as follows:-

1.

2.

3. Wherefore, it is respectfully prayed that this Hon'ble Court be pleased to :-

condone the delay of 22 days in filing the above mentioned Special Leave Petition, in the interest of justice and equity.

New Delhi
Date:

ADVOCATE FOR THE PETITIONER

IN THE SUPREME COURT OF INDIA

CIVIL APPELLATE JURISDICTION

SPECIAL LEAVE PETITION (CIVIL) Nos. /2015

IN THE MATTER OF:

Sri. K. Boopathy Petitioner

Versus

The Government of Karnataka and three others Respondents

AFFIDAVIT

I, K. Boopathy, aged 53 years, s/o. late Keshavalu Naidu, R/o. Door No.56, 1st Floor, Gold Towers, No.50, Residency Road, Bangalore- 560 025, Karnataka State, do hereby solemnly affirm and state on oath as follows:-

1. I am the petitioner in the above mentioned Special Leave Petition and as such I am fully conversant to the facts of the case.

2. The contents of the Synopsis and List of dates (B to…….), the Special Leave Petition paras 1 to 8 and IAs respectively have been read by me carefully and I have understood the

same, and I state that the facts stated herein are true to the best of knowledge and belief.

3. The Annexures annexed with the SLP are true copies of their respective originals.

DEPONENT

Bangalore
Date: 10.4.2015

VERIFICATION

Solemnly affirmed and signed before me on this day of 10th April, 2015, that the contents of this affidavit having been read over by me and admitted to be true and correct to the best of my knowledge and beliefs.

DEPONENT

Verified at Bangalore on this day of 10th April 2015.

IN THE SUPREME COURT OF INDIA

CIVIL APPELLATE JURISDICTION

SPECIAL LEAVE PETITION (CIVIL) Nos. /2015

IN THE MATTER OF:

Smt. Kausalya Bai Petitioner

Versus

The Union of India and others Respondents

AFFIDAVIT VERIFYING THE SPECIAL LEAVE PETITION

I, Smt. Kausalya Bai, aged 53 years, w/o. Sri. Late Samarth Singh, working as Farash, Office of All India Radio, Madikeri, Karnataka, resident of Door No.1025, Bogadi 1st Main/Cross, New Bogadi, Mysore, now at Bangalore, do hereby solemnly affirm and state on oath as follows:-

1. I am the petitioner in the Special Leave Petition and as such I am fully conversant to the facts of the case.

2. The contents of the Synopsis and List of dates (B to…….), the Special Leave Petition paras 1 to 8 and IAs respectively have been read by me carefully and I have understood the same, and I state that the facts stated herein are true to the best of knowledge and belief.

3. The Annexures annexed with the SLP are true copies of their respective originals.

DEPONENT

Bangalore
Date: 12.2.2015

VERIFICATION

Solemnly affirmed and signed before me on this day twelfth day of February 2015 that the contents of this affidavit having been read over to me in Kannada Language known to me and are admitted to be true and correct to the best of my knowledge and belief.

DEPONENT

Verified at Bangalore on this twelfth day of February, 2015